

		Even if there was not a clear and unmistakable intent to delegate the question of arbitrability to the arbitrator, the arbitration agreement is enforceable by the Moving Defendants. “Where a nonsignatory seeks to enforce an arbitration clause, the doctrine of equitable estoppel applies in two circumstances: (1) when a signatory must rely on the terms of the written agreement in asserting its claims against the nonsignatory or the claims are ‘intimately founded in and intertwined with’ the underlying contract [citations omitted] and (2) when the signatory alleges substantially interdependent and concerted misconduct by the nonsignatory and another signatory and ‘the allegations of interdependent misconduct [are] founded in or intimately connected with the obligations of the underlying agreement.’” (<i>Kramer v. Toyota Motor Corp.</i>, 705 F.3d 1122, 1128- 29 (9th Cir. 2013) (quoting <i>Goldman v. KPMG LLP</i>, 173 Cal.App.4th 209; <i>Cohen v. TNP 2008 Participating Notes Program, LLC</i> (2019) 31 Cal.App.5th 840, 863; <i>NAMA Holdings, LLC v. Related World Market Center, LLC</i> (Del. 2007) 922 A.2d 417, 433, fn. 35.) Here, Moving Defendants have standing to enforce the arbitration agreement because they are alleged to be agents of the signatory Ponder – his attorneys. The claims asserted against Moving Defendants are “intimately founded in and intertwined” with the Settlement Agreement as the claims relate to their representation of Ponder and the claims covered by the Settlement Agreement. Thus, arbitration of these claims is required regardless of whether the question of arbitrability is delegated to the arbitrator. Accordingly, the Motion to Compel Arbitration is GRANTED and the action shall be STAYED pending the completion of arbitration. An ADR Review Hearing is set for March 5, 2027 at 8:30 a.m. in Department C44. Clerk to give notice.
6	Moore vs. Panutich 2024-01438066	Motion to Appear Pro Hac Vice Vacated. See minute order dated 6/16/26.
7	Parkhill vs. Salt Creek Grille OC 2025-01510859	Demurrer to Complaint